

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
MAURICE HICKS,

Plaintiff,

-against-

THE CITY OF NEW YORK, SGT. ANTHONY DONATO,
Tax. Id. No. 948904, Individually and in his Official
Capacity, P.O. GRISLEYS GARCIA, Shield No. 25178,
Individually and in her Official Capacity, and POLICE
OFFICERS "JOHN DOE" #1-10, Individually and in their
Official Capacity (the name John Doe being fictitious, as the
true names are presently unknown),

Defendants.
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SUMMONS

Jury Trial Demanded

Plaintiff designates Bronx County as
the place of trial.

The basis of venue is:
CPLR 504(3)

To the above-named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of
your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance
on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of
service, where service is made by delivery upon you personally within the state, or, within 30 days
after completion of service where service is made in any other manner. In case of your failure to
appear or answer, judgment will be taken against you by default for the relief demanded in the
Complaint.

Dated: NEW YORK, NEW YORK
January 29, 2019

COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10279
(212) 374-9115

TO:

ZACHARY W. CARTER
Corporation Counsel of the City of New York
Attorney for Defendant THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

SGT. ANTHONY DONATO, Tax Id. 948904
43rd Precinct
900 Fteley Ave.
Bronx, NY 10473

P.O. GRISLEYS GARCIA, Shield No. 25178
46th Precinct
2120 Ryer Ave.
Bronx, NY 10457

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
MAURICE HICKS,

Plaintiff,

VERIFIED COMPLAINT

-against-

Jury Trial Demanded

THE CITY OF NEW YORK, SGT. ANTHONY DONATO, Tax Id. No. 948904, Individually and in his Official Capacity, P.O. GRISLEYS GARCIA, Shield No. 25178, Individually and in her Official Capacity, and POLICE OFFICERS "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

BASIS FOR VENUE:

CPLR § 504(3)

Defendants.

-----X

Plaintiff MAURICE HICKS, by his attorneys, COHEN & FITCH LLP, complaining of the defendants, respectfully alleges as follows:

FACTS

1. Plaintiff MAURICE HICKS is an African American male and has been at all relevant times a resident of Bronx County in the City and State of New York.

2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned, SGT. ANTHONY DONATO, Tax Id. No. 948904, P.O. GRISLEYS GARCIA, Shield No. 25178, and POLICE OFFICERS “JOHN DOE” #1-10, were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

The Incident

8. On or about November 11, 2017, at approximately 12:27 a.m.¹ the County of the Bronx, City and State of New York, Plaintiff MAURICE HICKS was lawfully in the vicinity of the River Park Towers, 30 Richman Plaza, Bronx New York.

9. At the aforementioned time and place, plaintiff was accosted by several NYPD officers, including, upon information and belief, defendants DONATO, GARCIA, and/or “JOHN DOE” #1-10, who began to question him.

¹ According to the criminal court complaint, the complained of incident occurred on or about November 11, 2017 at 12:00 p.m. However, upon information and belief, this is a typo as plaintiff believes the incident occurred at approximately 12:27 a.m. rather than 12:00 p.m.

10. Thereafter, these NYPD officers – defendants DONATO, GARCIA, and/or “JOHN DOE” #1-10 – grabbed claimant and pushed him and then placed him under arrest by handcuffing his arms tightly behind his back.

11. Subsequently, defendants DONATO, GARCIA, and/or “JOHN DOE” #1-10, searched plaintiff and then placed him in a police vehicle and transported him to a nearby police precinct.

12. At no time on November 11, 2017, did defendants DONATO, GARCIA, and/or “JOHN DOE” #1-10 possess probable cause to arrest plaintiff.

13. At no time on November 11, 2017, did defendants DONATO, GARCIA, and/or “JOHN DOE” #1-10 possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

14. Upon arrival at the precinct, plaintiff detained in a holding cell for several hours, during which time he requested his medication(s) from defendants DONATO, GARCIA, and/or “JOHN DOE” #1-10. However, defendants DONATO, GARCIA, and/or “JOHN DOE” #1-10 did not provide him with said medication(s) despite the fact plaintiff had said medication(s) on his person at the time of his arrest.

15. Subsequently, plaintiff was transported to a second police precinct where he was made to perform a breathalyzer test even though he had not driven any vehicles on November 11, 2017 (or the evening before, November 10, 2017).

16. Thereafter, plaintiff was transported back to the first precinct. Upon arrival, claimant was fingerprinted and photographed, placed in a holding cell for several hours and charged with several counts of Operating a Motor Vehicle while Intoxicated.

17. Subsequently, plaintiff was transported to Central Booking where he was processed and further detained in a holding cell for several hours. During this time, plaintiff lost consciousness, upon information and belief, as a result of not having been provided his medication(s), and had to be taken to the hospital.

18. Following several hours at the hospital, plaintiff was transported back to Central Bookings where he was detained in holding cells for several more hours before he was released following arraignment.

19. At no time on November 11, 2017, did plaintiff operate a motor vehicle while under the influence of alcohol and/or drugs, nor did he operate a motor vehicle at all, commit any crimes and/or offenses, or behave unlawfully in any way, nor did defendants DONATO, GARCIA, and/or “JOHN DOE” #1-10 have probable cause for his arrest.

20. In connection with plaintiff’s arrest, defendants DONATO, GARCIA, and/or “JOHN DOE” #1-10 filled out false and/or misleading police reports and forwarded them to prosecutors at the Bronx County District Attorney’s Office and then provided false and misleading information regarding the facts and circumstances of plaintiff’s arrest. Specifically, defendant DONATO falsely stated that he observed plaintiff operating a motor vehicle – in that he observed plaintiff seated behind the steering wheel, keys in the ignition, and the engine running while said vehicle was on the sidewalk of a public roadway – while intoxicated by alcohol.

21. As a result of his unlawful arrest, plaintiff spent approximately between thirty (30) and thirty-five (35) hours in custody and has made approximately eight (8) court appearances as of the date of this filing.

22. As a result of the foregoing, plaintiff was, and continues to be, maliciously prosecuted under Bronx County Criminal Court Docket Number 2017BX043549.

23. Upon information and belief, all charges against plaintiff will be dismissed in their entirety on a future court date.

24. As a result of the foregoing, plaintiff MAURICE HICKS, sustained, inter alia, loss of liberty, physical injury, mental anguish, shock, fright, apprehension, embarrassment, humiliation, lost wages, and deprivation of his constitutional rights.

FIRST CLAIM FOR RELIEF UNDER 42 U.S.C. § 1983
DEPRIVATION OF FEDERAL RIGHTS

25. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

26. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

27. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

28. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

29. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

30. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF UNDER 42 U.S.C. § 1983
FALSE ARREST

31. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

32. As a result of the aforesaid conduct by defendants DONATO, GARCIA, and/or “JOHN DOE” #1-10, plaintiff was subjected to an illegal, improper and false arrest by the defendants, taken into custody, and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

33. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

THIRD CLAIM FOR RELIEF UNDER 42 U.S.C. § 1983
DENIAL OF A FAIR TRIAL

34. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

35. Defendants DONATO, GARCIA, and/or “JOHN DOE” #1-10 created false evidence against plaintiff.

36. Defendants DONATO, GARCIA, and/or “JOHN DOE” #1-10 forwarded false evidence and false information to prosecutors in the Bronx County District Attorney’s office.

37. Defendants DONATO, GARCIA, and/or “JOHN DOE” #1-10 misled the prosecutors by creating false evidence against plaintiff and thereafter providing false testimony throughout the criminal proceedings.

38. In creating false evidence against plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants

DONATO, GARCIA, and/or "JOHN DOE" #1-10 violated plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

39. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FOURTH CLAIM FOR RELIEF ARISING UNDER 42 U.S.C. § 1983
MALICIOUS PROSECUTION

40. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

41. Defendants DONATO, GARCIA, and/or "JOHN DOE" #1-10 misrepresented and falsified evidence before the Bronx County District Attorney.

42. Defendants DONATO, GARCIA, and/or "JOHN DOE" #1-10 did not make a complete and full statement of facts to the District Attorney.

43. Defendants DONATO, GARCIA, and/or "JOHN DOE" #1-10 withheld exculpatory evidence from the District Attorney.

44. Defendants DONATO, GARCIA, and/or "JOHN DOE" #1-10 were directly and actively involved in the initiation of criminal proceedings against plaintiff MAURICE HICKS.

45. Defendants DONATO, GARCIA, and/or "JOHN DOE" #1-10 lacked probable cause to initiate criminal proceedings against plaintiff MAURICE HICKS.

46. Defendants DONATO, GARCIA, and/or "JOHN DOE" #1-10 acted with malice in initiating criminal proceedings against plaintiff MAURICE HICKS.

47. Defendants DONATO, GARCIA, and/or "JOHN DOE" #1-10 were directly and actively involved in the continuation of criminal proceedings against plaintiff MAURICE HICKS.

48. Defendants DONATO, GARCIA, and/or “JOHN DOE” #1-10 lacked probable cause to continue criminal proceedings against plaintiff MAURICE HICKS.

49. Defendants DONATO, GARCIA, and/or “JOHN DOE” #1-10 acted with malice in continuing criminal proceedings against plaintiff MAURICE HICKS.

50. Defendants DONATO, GARCIA, and/or “JOHN DOE” #1-10 misrepresented and falsified evidence throughout all phases of the criminal proceedings.

51. Specifically, defendants’ DONATO, GARCIA, and/or “JOHN DOE” #1-10 made the aforementioned false and misleading allegations regarding the circumstances surrounding plaintiff’s arrest.

52. Notwithstanding the perjurious and fraudulent conduct of defendants DONATO, GARCIA, and/or “JOHN DOE” #1-10, upon information and belief, all charges against plaintiff will be dismissed in their entirety on a future court date.

53. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

SIXTH CLAIM FOR RELIEF ARISING UNDER 42 U.S.C. § 1983
DELIBERATE INDIFFERENCE TO MEDICAL NEEDS

54. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

55. Defendants DONATO, GARCIA, and/or “JOHN DOE” #1-10, knew that plaintiff had a medical condition which required medication(s).

56. Notwithstanding this knowledge, defendants DONATO, GARCIA, and/or “JOHN DOE” #1-10, refused to provide adequate medical treatment in a timely fashion and refused to ensure that plaintiff received the proper treatment in that defendants refused to provide plaintiff

with his prescribed medication(s) despite plaintiff's requests for same and despite plaintiff was in possession of same.

57. In so doing, defendants DONATO, GARCIA, and/or "JOHN DOE" #1-10, exhibited a deliberate indifference to the health, safety, welfare and medical needs of plaintiff, in violation of his constitutional rights as secured by the Fifth, Eighth and/or Fourteenth Amendments to the Constitution of the United States.

58. As a result of defendants' DONATO, GARCIA, and/or "JOHN DOE" #1-10, deliberate indifference to plaintiff's medical needs, plaintiff suffered severe and permanent injuries.

SIXTH CLAIM FOR RELIEF ARISING UNDER 42 U.S.C. § 1983
MUNICIPAL LIABILITY

59. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

60. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

61. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- iii. fabricating evidence in connection with their prosecution in order to cover up police misconduct; and,
- iv. arresting innocent persons notwithstanding the existence of credible evidence

which exonerates the accused of any criminal wrongdoing and regardless of probable cause, in retaliation for these individual exercising their First Amendment rights; and,

- v. failing to take reasonable steps to control and/or discipline police officers who lie and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics; and,
- vi. failing to provide adequate medical treatment to arrestees and/or exhibiting a deliberate indifference to the health, safety, welfare and medical needs of arrestees.

62. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiff.

63. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiff as alleged herein.

64. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiff as alleged herein.

65. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiff's constitutional rights.

66. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiff's constitutional rights.

67. The acts complained of deprived the plaintiff of his right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon him; and

D. To receive equal protection under the law.

PENDANT STATE CLAIMS

68. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

69. On or about December 7, 2017, and within (90) days after the claim herein accrued, the plaintiff duly served upon, presented to and filed with defendant THE CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law § 50 (e).

70. Defendant THE CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

71. Defendant THE CITY OF NEW YORK demanded a hearing pursuant to General Municipal Law § 50-h. However, said hearing has not yet been held. Nonetheless, plaintiff remains willing and ready to attend said hearing upon the dismissal of the criminal charges against him.

72. This action was commenced within one (1) year and ninety (90) days after the causes of action herein accrued.

73. Plaintiff has and/or will comply with all conditions precedent to maintaining the instant action.

74. This action falls within one or more of the exceptions as outlined in C.P.L.R. § 1602.

**FIRST CLAIM FOR RELIEF UNDER N.Y. STATE LAW
FALSE ARREST/IMPRISONMENT**

75. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

76. Defendants DONATO, GARCIA, and/or “JOHN DOE” #1-10 arrested plaintiff in the absence of probable cause and without a warrant.

77. As a result of the foregoing, plaintiff was falsely imprisoned, his liberty was restricted for an extended period of time, he was put in fear for his safety, he suffered economic damages, and was humiliated and subjected to handcuffing and other physical restraints.

78. Plaintiff was conscious of said confinement and did not consent to the same.

79. The confinement of plaintiff was without probable cause and was not otherwise privileged.

80. As a result of the aforesaid conduct by defendants DONATO, GARCIA, and/or “JOHN DOE” #1-10, plaintiff was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings. The aforesaid actions by the defendants constituted a deprivation of plaintiff’s rights.

81. As a result of the aforementioned conduct, plaintiff has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

SECOND CLAIM FOR RELIEF UNDER N.Y. STATE LAW
ASSAULT

82. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

83. Defendants DONATO, GARCIA, and/or “JOHN DOE” #1-10 aforementioned actions placed plaintiff in apprehension of imminent harmful and offensive bodily contact.

84. As a result of defendants’ conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

THIRD CLAIM FOR RELIEF UNDER N.Y. STATE LAW
BATTERY

85. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

86. Defendants DONATO, GARCIA, and/or "JOHN DOE" #1-10 touched plaintiff in a harmful and offensive manner.

87. Defendants DONATO, GARCIA, and/or "JOHN DOE" #1-10 did so without privilege or consent from plaintiff.

88. As a result of defendants' conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

FOURTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

89. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

90. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

91. The aforementioned conduct was committed by defendants DONATO, GARCIA, and/or "JOHN DOE" #1-10, while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

92. The aforementioned conduct was committed by defendants DONATO, GARCIA, and/or "JOHN DOE" #1-10, while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

93. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to plaintiff.

94. As a result of the aforementioned conduct, plaintiff suffered severe emotional distress, mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

FIFTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION

95. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

96. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned and supervised all members of its Police Department, including the defendants individually named above.

97. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including the defendants individually named above.

98. Due to the negligence of the defendants as set forth above, plaintiff suffered mental injury, pain and trauma, together with embarrassment, humiliation shock, fright, and loss of freedom.

99. As a result of the foregoing, plaintiff is entitled to compensatory damages and is further entitled to punitive damages against the individual defendants.

SIXTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
MALICIOUS PROSECUTION

100. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

101. On or about November 11, 2017, defendants DONATO, GARCIA, and/or "JOHN DOE" #1-10 commenced a criminal proceeding against plaintiff.

102. Defendants DONATO, GARCIA, and/or "JOHN DOE" #1-10 lacked probable cause to commence said criminal proceeding against plaintiff.

103. Defendants DONATO, GARCIA, and/or "JOHN DOE" #1-10 were motivated by actual malice in commencing said criminal proceeding against plaintiff.

104. From November 11, 2017 through August 15, 2018, plaintiff was forced to repeatedly make appearances in Criminal Court to defend himself against the unlawful prosecution initiated by defendants DONATO, GARCIA, and/or "JOHN DOE" #1-10.

105. As a result of the malicious prosecution against him, plaintiff spent over two and half (2.5) years making court appearances.

106. On or about August 15, 2018, the criminal prosecution against plaintiff terminated in his favor and all charges against him were dismissed.

107. As a result of the aforementioned conduct, plaintiff suffered mental and physical injury, together with embarrassment, humiliation, shock, fright, and loss of freedom.

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
January 29, 2019

BY: _____/S_____
GERALD COHEN
JOSHUA FITCH
ILYSSA FUCHS

COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10279
(212) 374-9115

ATTORNEY'S VERIFICATION

ILYSSA S. FUCHS, an attorney duly admitted to practice law in the Courts of the State of New York, shows:

That she is a member of the law firm of COHEN & FITCH, LLP the attorneys for plaintiff MAURICE HICKS in the within entitled action

That your deponent has read the foregoing **VERIFIED COMPLAINT** and knows the contents thereof, and that the same is true to her own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the plaintiff is that the plaintiff is not within the county wherein deponent maintains her office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
January 29, 2019

_____/S_____
Ilyssa Fuchs